

25SMCV05515 25SMCV05515

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-27

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Case Number: 25SMCV05515 Hearing Date: August 27, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

7, 2026 – continued to August 27, 2026

CASE NUMBER

25SMCV05515

MOTION

Monetary

Sanctions

MOVING PARTY

Plaintiff

Mehrdad Dayani

OPPOSING PARTY

Defendant

Kia America, Inc.

BACKGROUND

This case arises from allegations that Defendant failed to repair or

replace a vehicle it sold to Plaintiff in violation of the Song-Beverly

Act.

On October 21, 2025, Plaintiff Mehrdad Dayani ("Plaintiff") filed suit

against Defendant Kia America, Inc. ("Defendant") alleging three causes of

action for violations of the Song-Beverly Act.

Plaintiff now moves for monetary sanctions in the amount of \$2,500

against Defendant's counsel of record pursuant to Code of Civil Procedure

section 871.26, subdivision (j)(2) for failure to produce a witness to testify to

the categories as set forth in Section 871.26, subdivision (i), within 120 days

of filing its Answer, in violation of Section 871.26, subdivision (c).

Defendant opposes the motion and Plaintiff replies.

REQUEST

FOR JUDICIAL NOTICE

Plaintiff requests judicial notice

of the fact that Defendant elected to opt-in to the procedures for manufacturers pursuant to Code of Civil Procedure sections 871.20 through 871.30, as evidenced by the official list published online by the Department of Consumer Affairs.

Judicial notice may be taken of official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States. (Evid. Code, § 452, subd. (c).

Thus, the Court will take judicial notice of the fact that Defendant appears on the Department of Consumer Affairs' official list of manufacturers who have opted in to the procedures outlined in Code of Civil Procedure sections 871.20 through 871.30 as an official act.

ANALYSIS

Code of Civil Procedure section 871.26, subdivision (c) provides: "Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of [...] the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i)."

Subdivision (j) provides, "Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to

any other sanctions imposed pursuant to this chapter, a court shall impose [...]

a one-thousand-five-hundred dollar (\$1,500) sanction against the plaintiff's

attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the

defense attorney respectively, paid within 15 business days for failure to

comply with the provisions relating to depositions as prescribed in subdivision

(c)."

Here, Defendant's Answer was filed on December 22, 2025. One hundred and twenty (120) days thereafter was

April 21, 2026.

On December 23, 2025, Plaintiff noticed Defendant's deposition for

March 17, 2026. (Greco Decl. ¶¶ 2-3 and

Ex. 1.) Additionally, Plaintiff

attempted to meet and confer regarding the deposition date. (Greco Decl. ¶ 5 and Ex. 2.)

On March 12, 2026, Defendant electronically served objections to the

deposition notice that included objections to the noticed date. (Greco Decl. ¶ 5 and Ex. 3.)

On April 24, 2026—three days after the statutory deadline—Defendant

agreed to produce its witness for deposition on May 18, 2026. (Greco Decl. at ¶ 6 and Ex. 4.) Accordingly, Plaintiff served a new notice

for that date. (Greco Decl. at ¶ 7 and

Ex. 5.)

On May 18, 2026, Plaintiff's counsel deposed the witness Defendant

produced, David Sakadjian, who is not an employee of Defendant's, but rather a

contract employee through a company called Advantage Technical who merely

reviewed a series of documents Defendant had provided to him. (Greco Decl. ¶ 8.) As a result, according to Plaintiff, Sakadjian

was unable to answer basic questions within the categories enumerated in Code

of Civil Procedure section 871.26, subdivision (i), including:

.

whether any warranty claims had been submitted

and denied,

.

whether any repairs had been made during the

vehicle's prior ownership,

.

whether any repairs were conducted as part of

the process to certify the pre-owned vehicle for re-sale,

.

the results of the certification inspection,

.

whether additional information regarding repairs

was communicated to Defendant after October 30, 2025,

.

how specific software applied to the vehicle

would address Plaintiff's concerns,

.

a description of the "open campaign" referenced

in Defendant's document production,

.

whether that campaign was performed,

.

whether Defendant had access or information

regarding diagnostic trouble codes for the vehicle from its proprietary tool.

(Greco

Decl. ¶ 8.)

In opposition, Defendant argues that Plaintiff has failed to

demonstrate that Defendant lacked good cause, and because Defendant produced a

witness, Plaintiff's quarrel is with the sufficiency of the witness, not

Defendant's outright failure to comply with the statute.

Defendant also argues that its witness did in fact testify as

to the various categories above that Plaintiff said he was unable to testify

about.

Specifically, Defendant points out Sakadjian testified about the

warranty coverage and claims as follows:

Q: On this document here, is there any

information related the CPO warranty?

A: Yes.

Q: All right.

Where do I find that?

A: I will see there is an area marked CPO, and

there's a Y, then a contract number associated with it.

[...]

Q: [...] can you tell me what the document is we're looking at on page

1?

A: This document is a list of the warranty claims associated with the

vehicle.

Q: Do you know if there have been any additional warranty claims since

April 8, 2025? [...]

A: Based on the documentation I have reviewed, they speak for

themselves. If I'm correct, it would be

these only.

[...]

Q: I have two lines that say W and T.

Do you know what the W and the T stand for?

A: I know the W stands for warranty.

I'm not completely sure what the T stands for.

Q: Okay. Underneath that for

the April 8, 2025 repair date, we have a W.

Does that indicate that the repair that follows after this was covered

by Kia's warranty?

A: Yes.

Q: Does Kia distinguish in any way, you know, what warranty is

covering it, whether it's the CPO warranty, basic warranty, power train

warranty, anything like that?

A: Well, based off the vehicle's mileage and the vehicle's timeline,

that would denote what warranty is covering it.

They have specific coverage periods.

[...]

Q: Okay. Do you know what – Van Nuys in response to the customer's

complaint on this occasion? [...]

A: They scanned the vehicle for DTC and found no historical faults or

active faults, and they test drove the vehicle for 12 miles and monitored live

engine data and found the engine to have rough idle – or did not have rough

idle or heard revving at this time.

Unable to duplicate customer's concern.

Q: This was listed as internal.

I assume there was no warranty reimbursement made on this objection?

A: Correct. It's listed as

internal.

Q: Sorry. It's a specific

question. Did Kia provide any warranty

reimbursement on this occasion?

A: Based on the documentation we reviewed earlier, this was not

warranty – submitted for warranty claim.

(Ex.

6 to Greco Decl. at pp. 30:23-31:4; 32:8-18; 33:6-61:10-62:6.) Further, Sakadjian testified as follows about

DTCs performed on the vehicle:

Q: What was this designed to address, Mr. Sakadjian? [...]

A: This document is provided to address and issue with the ITM module

when a vehicle exhibits certain DTCs that are listed in this paragraph.

Q: Do you know if this bulletin was ever applied to the subject

vehicle? [...]

A: It was not.

Q: Do you know if these DTCs have ever been present in the subject vehicle? [...]

A: Based on the documentation provided by the service centers, they were not listed in any of the documentation.

Q: Is the subject vehicle within the range of vehicles this TSB is designed to cover?

A: Yes, it is.

(Ex.

6 at pp. 58:3-59:2.)

However, Sakadjian was unable to testify about repairs during the car's prior ownership or during the certified pre-owned vehicle inspection process, although he testified about the certified pre-owned vehicle inspection process generally.

(See Ex. 6 at pp. 34:3-35:3.) Further,

although Sakadjian was unable to testify from personal knowledge whether

Plaintiff's vehicle received an over-the-air update, he indicated that there

would be specific documentation in the vehicle's repair history about that. (Ex. 6 at pp. 26:25-27:5.)

Defendant also argues Sakadjian's inability to testify about events

occurring after October 30, 2025 was a reflection of the scope of records he

reviewed, not his incompetence as a witness.

Ultimately, the record does not demonstrate that Defendant failed to comply with the statutory requirements in bad faith. The evidence demonstrates Plaintiff's counsel did not follow up about re-scheduling the PMQ deposition after it received Defendant's timely objections until the afternoon of April 23—two days after the statutory deadline—to which Defendant's counsel responded the very next morning, offering the May 18 deposition date.

(Ex. 4 to Greco Decl.)

Further, as demonstrated above, Defendant's PMQ did substantially testify at the May 18 deposition about the majority of the categories Plaintiff claims he did not. For those questions he was unable to definitively answer, he nonetheless pointed Plaintiff to where the answers to those questions would appear in the documents.

At the initial hearing, Plaintiff argued that critical documents like the CPO warranty and information about the CPO inspection have not yet been produced. The Court continued the hearing so that the parties could complete this essential discovery before ruling on the motion.

In the Joint Trial Readiness Conference Report, the parties indicated they do not anticipate Court intervention on any discovery issues, except this motion for sanctions. Therefore, the

Court presumes that the CPO warranty has since been produced.

CONCLUSION AND ORDER

Therefore, finding the evidence does

not demonstrate that Defendant failed to comply with the requirements of Code

of Civil Procedure section 871.26, subdivision (c), the Court denies

Plaintiff's motion for sanctions.

Plaintiff shall provide notice of the Court's ruling and file the

notice with a proof of service forthwith.

DATED: August 27, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court